Brazoria County District Court

Cause No. 2024-CV-0008

Lindsey Smith, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	4-21-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation contained in it, and Defendant demands strict proof of such allegations by a preponderance of the evidence as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any bruden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the incident. Plaintiff failed to keep a proper lookout, failed to yield the right of way while moving through the parking lot, and failed to maintain a safe speed under the circumstances. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff.

Second, the injuries and damages claimed were caused, in whole or in part, by a preexisting condition or by a subsequent event unrelated to the incident. Defendant denies that the incident proximatley caused the claimed injuries.

Third, Plaintiff failed to mitigate damages by unreasonably delaying treatment or failing to follow medical advice, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.